

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN POLAND

Complete Community Opposition How-To

This guide uses the Polish terms you'll actually run into — the decyzja środowiskowa and its OŚ, the raport, the RDOŚ and GDOŚ, the odwołanie to the SKO, the skarga to the WSA — and explains each in plain words the first time. Poland is layered: the voivodeships and the gminas each have their roles, so check locally.

INTRODUCTION & FRAMEWORK

The Rospuda Valley in the far north-east of Poland is a pristine peat-bog wetland — a river valley of rare mires under the highest protection European law provides, a **Natura 2000** site. In the mid-2000s it was in the path of the **Augustów bypass**, part of the **Via Baltica** expressway meant to run from Warsaw to Helsinki. The road agency began preparing to drive four lanes straight through the bog. Against it stood a coalition few governments expect to lose to: Polish and international environmental groups — the Polish Society for the Protection of Birds (OTOP/BirdLife), WWF-Poland, the Polish Green Network, CEE Bankwatch — a conservationist named **Małgorzata Górską** who would win the Goldman Prize for it, mass protests in Poland and abroad, *and* the machinery of the European Union. The **European Commission** opened an infringement case; the **European Court of Justice** ordered the works stopped because the alternatives hadn't been properly assessed under EU nature law; and the **Polish administrative courts** — up to the Supreme Administrative Court — repeatedly cancelled the environmental consent as inadequate under that same law. In **March 2009 the government gave way and rerouted the bypass to avoid the Rospuda Valley entirely**. The road was built — on a different route, sparing the bog.

The coalition that saved the Rospuda Valley — Polish and international groups like OTOP/BirdLife, WWF-Poland, and CEE Bankwatch, alongside the conservationist Małgorzata Górską — drew on the single sharpest lever in Poland: **European law — Natura 2000 and the EU environmental directives — enforced through the administrative courts and, behind them, the European Commission and the Court of Justice**. A project that damages a protected EU site without properly assessing the alternatives is on very weak legal ground, and Poland has been made to back down on exactly that basis more than once — the ancient **Białowieża Forest** was saved the same way in 2018. To use it, an **environmental organisation** (*organizacja ekologiczna*) must formally join the proceeding — by declaring its participation under **article 44 of the EIA Act** — to gain the rights of a party: the right to appeal and to go to court. This is the technical point that decides cases: Polish courts, including the Supreme Administrative Court in a 2025 ruling, have held that an organisation that did **not** join at first instance generally cannot appeal later — so joining early, and filing your comments during participation, is what unlocks every later legal step and builds the record a court will read. But these tools have real limits, and this guide states them plainly. The people of Augustów actually *wanted* the bypass, to get heavy traffic out of their town, and the win was a *re-route*, not an abandonment — the community was not of one mind, and the fight balanced a protected wilderness against a town's real need. Poland's tools are powerful, but they don't erase hard trade-offs.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. A major Polish project needs its **environmental decision** (*decyzja środowiskowa*), resting on an **environmental**

impact assessment (OO■) and its report (*raport*); where it touches a **Natura 2000** site or protected species it runs into EU law; and it needs public acceptance. Every one of those is a link you can grab. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If the project hits a Natura 2000 site or the assessment botched the alternatives, EU law is your sharpest lever** — the administrative courts and, behind them, the European Commission, as at Rospuda and Bia■owie■a.
- **You must join the proceeding early** — an environmental organisation that doesn't declare its participation at first instance generally can't appeal later.
- **If there's no EU angle and the state backs the project, it's harder** — you fight on the assessment's flaws, the movement, and public opinion, and be honest that communities aren't always united.

Read the whole guide once before you move. Two habits run through it: **use the rights the law gives you** — join early, comment in participation, use EU law, appeal and go to court — and **run every front at once**: the documents, the participation, the courts, the European Commission, the movement, the press. That's how Rospuda was won.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

The core decision is the **decyzja ■rodowiskowa** (environmental decision). For major projects — roads, projects affecting **Natura 2000**, and others on the "always significant" list — it's issued by the **RDO■** (*Regionalna Dyrekcja Ochrony ■rodowiska*, the Regional Directorate for Environmental Protection), with appeals going up to the **GDO■** (the General Directorate). For many smaller projects the **gmina** (municipality) issues the decision, with the RDO■ giving a binding opinion, and appeals going to the **SKO** (the regional appeal board). **Wody Polskie** handles water opinions; the **sanepid** handles sanitary ones. Know which body issued your decision, because it sets where the appeal goes.

How a Project Moves — and Where You Jump In

The environmental impact assessment (OO■) and public participation. For projects that (always or potentially) significantly affect the environment, the developer files the **raport** (the assessment report), and there's a **public-participation** stage. *Your opening — and it arms every later step:* **join the proceeding under article 44 as an organisation**, and file your comments now. This is what gives you the right to appeal and to go to court.

The environmental decision (decyzja ■rodowiskowa). The RDO■ or gmina issues it. *Your opening:* appeal it.

Later permits (building, etc.). These flow from the environmental decision. *Your opening:* a permit resting on a flawed decision can be challenged.

Construction. *Your opening:* works in breach of the decision's conditions can be stopped.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — company records set the exposure. **What it still needs** — the environmental decision not final or under challenge, the financing not closed: whatever's missing is the soft spot. **Who's paying** — often **EU funds**, which come with environmental conditions and can be frozen if EU law is breached (a real pressure point in Poland).

Who's Supposed to Be Watching

Each is an ally or an arena. The **RDO** and **GDO** run the environmental decision and can be pressed. The **SKO** hears appeals of gmina decisions. The **administrative courts** — the **WSA** (*Wojewódzki Sąd Administracyjny*, the regional administrative court), with appeal to the **NSA** (the Supreme Administrative Court) — review legality and can quash a decision. The **European Commission** enforces EU environmental law against Poland — the lever that broke Rospuda. The **Ombudsman (Rzecznik Praw Obywatelskich)** takes rights complaints. And Poland's **environmental movement, its organisations with party rights, and a free press** are the forces that reach furthest — the coalition that made Rospuda.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether a Natura 2000 site or EU-law issue is engaged, whether you joined the proceeding in time, and how set the state is on the project.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Join under art. 44 + comment	15–35%	during OO	low	Party rights; the record; a redo
Odwołanie (appeal to SKO / GDO)	20–45%	months	low	Decision overturned or sent back
Skarga to the WSA (→ NSA)	30–55%	1–3 yr	low–mod	Decision quashed
EU law / Natura 2000 + European Commission	35–60%	varies	low	Works stopped; project rerouted (Rospuda)
Movement + media	25–50%	months–yr	low	Political cost; project reconsidered
Everything together (Natura 2000, EU watching)	40–65%	1–4 yr	low–mod	Stopped, quashed, rerouted, delayed
Everything together (no EU angle, state-backed)	20–40%	1–4 yr	low–mod	Delayed, conditioned, exposed

The lever that moves the needle most is **EU law — Natura 2000 — through the administrative courts and the European Commission**, backed by early participation and the movement. Rospuda and Białowieża show the ceiling (an expressway rerouted, a primeval forest saved). The honest floor is a project with no EU angle and firm state backing, where a win looks like a quashed decision, delay, and conditions.

On cost: joining, commenting, appealing, and going to the WSA are cheap, and an environmental organisation with party rights can carry the case — team up with one, and be sure it joins early.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this decision, this flaw, this Natura 2000 line — is strong. Answer five questions in writing.

1. What is it, and who's behind it? Name the project, the company, its owners, its financiers (especially any EU funds).

2. Where is it, and what does it touch? Get the boundaries and lay them over what's protected — a Natura 2000 site, protected species, a national park, a wetland, a forest. **A Natura 2000 site is Poland's sharpest legal tripwire**, so this map is your most important document — Rospuda turned on exactly this.

3. What stage is it at, and what's the next deadline? Is the OO■ participation stage open — can you still **join under article 44**? Has the environmental decision issued (starting the appeal clock — usually **14 days**)? These openings are strictly time-bound, and joining late can lose you the case.

4. What does it still need that it lacks? An environmental decision not final, later permits not granted, financing not closed. The missing piece is the soft spot.

5. Who else is affected, and who already opposes it? Neighbours, local groups, national and international organisations (OTOP/BirdLife, WWF-Poland, the Polish Green Network). And be honest about who *supports* it, so you're not surprised — at Rospuda, the town wanted the road.

What this looks like in real life. A community learns a road or mine is planned through a Natura 2000 wetland, and the assessment waves away the alternatives. The five questions yield: a named developer (and EU funds) behind it; a site on a Natura 2000 bog (the sharp lever); an OO■ stage open to join; a project still needing a final decision; and a coalition of organisations ready to join under article 44. That's the Rospuda pattern — join now, build the EU-law case, and be ready for the courts and the Commission.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof. Build it in three layers.

Layer one: the paper trail. Get the documents the decision rests on — the assessment report (raport), the environmental decision (decyzja ■rodowiskowa) and its conditions, the Natura 2000 assessment, the alternatives study, the RDO■ opinion. Poland's environmental-information rights (from the EIA Act and the Aarhus Convention) let you demand what isn't public. Then read the report hard for flaws — especially a **failure to properly assess the alternatives** to a route through a protected site, which is exactly what sank the Rospuda consent.

Layer two: the ground truth. Dated, located photographs and video of the site, the bog, the forest, the species — baseline images before any damage most of all — and the testimony of affected neighbours.

Layer three: the map of protections. Lay the project over every Natura 2000 site, protected species, national park, and wetland it touches, so each legal tripwire is visible. Walking in with the report, the decision, and that map is what makes the RDO■, the courts, and the European Commission take you seriously.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The report, the environmental decision and conditions, the Natura 2000 and alternatives assessments, the RDO■ opinion** — from the RDO■ or gmina; force out the rest under the environmental-information rules (8A).
- **Later permits and planning documents** — from the gmina.
- **Ownership and financing** — company records, and especially **EU-fund** documents.
- **The protections map** — Natura 2000, protected species, national parks, and wetlands, laid over the site.
- **Dated site evidence and named testimony** — photographs marked with date and place, and neighbours' statements.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Rospuda drew a coalition from local activists to international NGOs. Build your coalition in four moves.

Start with a tight core. The neighbours most affected, the people who know the land, a few tireless organisers, and respected local figures — and be clear-eyed about where local opinion is divided.

Widen the circle. Pull in the surrounding villages, local groups, and — Poland's strength — the national and international organisations. Hold meetings where people see the evidence — the map of the project over the Natura 2000 site.

Bring in an environmental organisation — and have it join under article 44, early. This is Poland's decisive technical move: an **organisation** (OTOP/BirdLife, WWF-Poland, the Polish Green Network, or a properly constituted local one) that declares its participation at first instance gains the party rights to appeal and litigate — and one that joins late generally can't. Team up early and make sure it joins in time.

Build to last. Polish fights can run for years. Build clear roles, a secure shared archive, a way to decide together, and a plan for the financial and emotional toll — and, if direct action is contemplated, get legal advice first.

STEP 4: LEGAL CHALLENGES & EU LAW

Law is Poland's sharpest lever — especially European law — but it turns on a technical gateway you must not miss.

Join the Proceeding — It Unlocks Everything

The first and most important legal act is procedural: **join the proceeding as an organisation under article 44 of the EIA Act, at first instance, and file your comments in the participation stage.** This gives you the rights of a party — to appeal and to go to court. Miss it, and (per the Supreme Administrative Court's 2025 ruling) you generally lose the right to appeal later. Everything below depends on this step.

The Appeal and the Administrative Courts

Once the environmental decision issues, **appeal it** — the **odwo■anie**, usually within **14 days**, to the **SKO** (for a gmina decision) or the **GDO■** (for an RDO■ decision). If the appeal fails, take a **skarga** (complaint) to the **WSA** (the regional administrative court), usually within **30 days**, with further appeal to the **NSA** (the Supreme Administrative Court). The courts review legality — a defective assessment, an ignored Natura 2000 impact, alternatives not properly weighed — and can quash the decision and send it back.

European Law — the Sharpest Ground

Poland's single strongest lever is **EU environmental law**, above all **Natura 2000**. A project that would harm a protected EU site must show there's no satisfactory alternative and an overriding public interest, and must properly assess those alternatives — the failure that sank Rospuda. Two routes flow from this. In the Polish courts, argue the decision breaches EU nature law. And in parallel, **complain to the European Commission**: the Commission can open an infringement case and take Poland to the **European Court of Justice**, which can order works stopped — the lever that broke both Rospuda and Biańowieża. Because Polish projects often run on **EU funds**, the EU-law angle has real teeth.

The Honest Limits

Straight talk: EU law and the courts are powerful, but the article-44 gateway is unforgiving, litigation is slow, and where there's no EU angle a state-backed project is hard to stop; and, as Rospuda showed, the community may be divided and the outcome a re-route rather than an abandonment. So use the strong tools — join early, appeal, the WSA and NSA, EU law and the Commission — but pair them with the movement and the media, be honest about trade-offs, and count a quashed decision, a re-route, delay, and conditions as wins alongside a clean stop.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A document becomes a legal flaw. Not "the report is bad" but *"the assessment never properly weighed the alternatives to a route through this Natura 2000 site — so, as at Rospuda, the decision breaches EU law."*

A designation becomes a barrier. *"This is a Natura 2000 site; the project needs an overriding public interest and no satisfactory alternative, and it has neither."*

Your standing becomes a case. *"As an organisation that joined under article 44, we will appeal and take a skarga to the WSA."*

The harm becomes a public — and European — story. *"A protected wilderness under EU law, to be destroyed for a project that never seriously looked at the alternatives."*

Match it to the venue: the comments to the RDO; the appeal to the SKO or GDO; the legal flaw to the WSA and NSA; the EU-law breach to the European Commission; the human and the landscape to the press.

STEP 5: MEDIA STRATEGY

In Poland, publicity — at home and in Europe — is power. Rospuda became an international test case, and that attention, reaching Brussels, was decisive. A free press, an engaged public, and a European audience make the media front central.

Lead with people and place, not procedure. Not "the assessment failed to weigh alternatives" but "a pristine wilderness protected across Europe, to be destroyed for a road that never seriously looked at the alternatives." Use your strongest material: dated photographs, the map of the project over the Natura 2000 site, named voices, and any court or Commission action banked.

Work several audiences at once — including Europe. Local and national press build pressure at home; the environmental movement amplifies; and European media and institutions reach the Commission, which

can act on Poland. Make it easy: captioned photos, accurate summaries, a map, strong interviews.

Two hard rules. Accuracy above all — one exaggeration can discredit everything. And protect people — get legal advice before any direct action.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Environmental-information request (to the RDO■ / gmina).

Subject: Wniosek o informacj■ o ■rodowisku — [projekt].

"Under the environmental-information rules, we, residents of [place], request the raport, the environmental decision and its conditions, the Natura 2000 and alternatives assessments, and the RDO■ opinion for [project] at [location]. [Contact.]"

8B — Joining the proceeding and commenting (article 44).

Subject: Zg■oszenie udzia■u (art. 44) i uwagi — [projekt].

"We, [organisation], declare our participation in the proceeding for [project] under article 44 of the EIA Act, and submit our comments: [the assessment fails to weigh alternatives to a route through this Natura 2000 site / ignores this protected species]. [Contact.]"

8C — Odwo■anie (appeal of the environmental decision).

Subject: Odwo■anie od decyzji ■rodowskowej — [projekt].

"We appeal the environmental decision for [project], issued on [date], to the [SKO / GDO■], on the grounds that [the assessment was inadequate / the Natura 2000 impact and alternatives were not properly assessed]. [Attach the decision and our evidence.]"

8D — To an environmental organisation (join + litigate).

Subject: Pro■ba o wsparcie i udzia■ — [projekt] w [miejsce].

"Our community faces [project] on [a Natura 2000 site]. We ask you to join the proceeding under article 44 at first instance, so you gain the party rights to appeal and litigate, and to work with us on the EU-law case. [Contact and evidence summary.]"

8E — Complaint to the European Commission.

Subject: Possible breach of EU environmental law — [project], Poland.

"We wish to report a possible breach of EU environmental law (the Habitats/Birds Directives and EIA Directive) by [project] at [location], which damages the [named] Natura 2000 site without properly assessing alternatives or establishing an overriding public interest. [Attach evidence.]"

8F — Letter to the press.

Subject: [Community] moves to protect [wetland / forest / valley] from [project].

"For generations the people of [place] have lived beside [the wetland / forest] at [location] — a place protected across Europe. Now [project] threatens to destroy it. We can provide photographs, documents, a map and interviews. [Contact.]"

8G — To an EU-fund body.

Subject: EU-law and funding risk in [project].

"We understand [project] at [location] may be [EU-funded] and that it damages a Natura 2000 site in possible breach of EU law. We ask you to weigh this against the environmental conditions attached to EU funds. [Contact and evidence summary.]"

8H — Rallying the community.

Subject: We can stop this — here's how.

"[Project] threatens [our wetland / forest / valley]. At Rospuda, a coalition and EU law forced the government to reroute an expressway around a protected bog. With early participation, the courts, the European Commission, and the movement behind us, we have a real chance. Please join us: help us join the proceeding, share what you know, and stand with us. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

- 1. Nail down the project and its footprint, and look for a Natura 2000 site.** An EU-protected site with alternatives not properly weighed is your sharpest lever.
- 2. Join the proceeding under article 44 and comment now (8B).** This is the gateway — miss it and you may lose the right to appeal.
- 3. Request the report and the decision (8A), and read them for the alternatives flaw.**
- 4. Photograph everything, with dates and places.** Baseline images before any damage matter most.
- 5. Appeal within 14 days (8C), then take a skarga to the WSA within 30 — and complain to the European Commission (8E).**
- 6. Get an organisation to join and litigate (8D), and go public — in Europe too (8F).** Rospuda was won in Brussels as much as in Warsaw.

Even lean, those six use your rights, protect the gateway and the deadlines, build the record, and open the EU-law front.

WHEN THE SYSTEM IS TILTED

Poland's tools are real, but the field can be tilted, and you must plan for it.

When there's no EU angle. Without a Natura 2000 site or an EU-law breach, your sharpest lever is gone; then fight on the assessment's flaws, the courts, the movement, and public opinion.

When you miss the gateway. The article-44 joining rule is unforgiving — an organisation that doesn't join at first instance generally can't appeal. So join early, always; it's the single most important procedural act.

When the state backs the project. A determined government is a hard opponent. Use EU law and the European Commission (Poland has been made to back down before), keep the movement alive, and make the EU-funding angle a pressure point.

When the community is divided. Rospuda's town wanted the road. Be honest about trade-offs, seek solutions that meet real local needs (a re-route, not just a block), and don't pretend a community speaks with one voice when it doesn't.

What still works, and it's a lot. EU law and Natura 2000 give hard grounds; the administrative courts quash unlawful decisions; the European Commission can force a stop; and early participation opens every door.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Poland, by regional standards, has functioning institutions — but the closeness of some projects to political and business interests can bend a decision, and where it does, you expose it.

How to spot it. Decisions against the technical evidence; an assessment tailored to a preferred route; a process rushed to lock in EU funding; revolving doors between developers and authorities; benefits to the connected while the community carries the harm.

Who's supposed to guard against it. The **Central Anti-Corruption Bureau (CBA)** and the **prosecutors** investigate graft. The **Supreme Audit Office (NIK)** examines public money. The **administrative courts** can quash a tainted decision, and the **European Commission** can act where EU funds are misused. And Poland's **investigative press** has exposed captured projects.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the proper bodies and trusted journalists rather than making accusations you can't back. Pair the exposure with the legal challenge and the public campaign, so the impropriety and the pressure land together.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents build your proof; pinning down the Natura 2000 line aims it; joining early opens the doors; the courts and the Commission press the case; the media raises the cost. Together they multiply. One at a time, they stall.

Early on (weeks 1–8): nail down the project, its footprint, and any Natura 2000 site; **join the proceeding under article 44 and comment**; request the report and decision; photograph the baseline; get an organisation to join and a lawyer; build your core.

In the thick of it (months–years): appeal the decision within 14 days, then take a skarga to the WSA; press the EU-law and alternatives grounds; complain to the European Commission; deepen the coalition; open the media front at home and in Europe.

The long haul (years): carry the case through the WSA and NSA and, via the Commission, the European Court of Justice; keep the movement and the pressure alive; hold the line for a quashed decision, a re-route,

delay, or an outright stop.

FINAL ASSESSMENT

Stopping a destructive project in Poland can be done — a coalition and EU law forced the government to reroute an expressway around a protected peat bog, and the same lever saved Europe's last primeval forest. Hold both truths. Poland's tools are real and, in one respect, unusually strong: EU environmental law and Natura 2000, enforced through administrative courts that quash unlawful decisions and a European Commission that can force a stop; environmental organisations with party rights; and a free press with a European audience. And the constraints are real: the article-44 gateway is unforgiving, the EU lever needs an EU angle, and — as Rospuda showed — communities can be divided and the win a re-route rather than an abandonment.

Here's the discipline that wins. Find the Natura 2000 site and the flaw in the alternatives, and pry loose the record. **Join the proceeding under article 44 at first instance** — this is the gateway to everything — and file your comments. Appeal within 14 days, take a skarga to the WSA, and complain to the European Commission. Get an organisation to carry the case, be honest about the trade-offs, and carry the story to the public and to Europe. Count a quashed decision, a re-route, delay, and conditions as wins alongside a clean stop. That's what Rospuda did — a coalition, the courts, and European law together. So can you.